

BC713870 BC713870

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Case Number: BC713870 Hearing Date: September 18, 2026 Dept: 406

CARLOUS PARKER, et al.,

Plaintiffs,

v.

PARKER'S TOWING &

SALVAGE, INC., et al.,

Defendants.

Case No.: BC713870

Hearing Date: September 18, 2026

[TENTATIVE]

order RE:

plaintiffs' motion to enforce settlement

BACKGROUND

On July 13, 2018, Plaintiffs Carlous

Parker and Renee Parker filed this action against Defendants Parker's Towing

& Salvage, Inc.; Kenneth Parker; Yvonne Parker; Donald Parker; Margot

Parker; Anthony Glenn; and June Glenn. The complaint asserts partition of real

property, accounting, breach of fiduciary duty, conversion, conveyance of

property, and involuntary dissolution of corporation.

On August 24, 2018, Donald Parker and Paker's Towing & Salvage, Inc. filed a cross-complaint against Carlous Parker and Renee Parker, asserting breach of fiduciary duty, conversion of corporate assets, and intentional interference with prospective economic advantage.

On December 3, 2020, the Court held a hearing on Order to Show Cause Re: Dismissal (Settlement). There was no appearance by either side, and the Court ordered the action dismissed without prejudice.

On June 5, 2026, Carlous Parker and Renee Parker (collectively, Plaintiffs) filed the instant motion to enforce settlement. Kenneth Parker and Donald Parker (collectively, Defendants) filed an opposition on September 10, 2026. Plaintiffs filed a reply on September 11, 2026.

LEGAL STANDARD

"If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc., § 664.6(a).)

DISCUSSION

Section 664.6 provides that upon proper agreement, "the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement." (Code Civ. Proc., § 664.6(a).) In order for the court to retain jurisdiction upon dismissal, the parties must present the requisite agreement to the court prior to dismissal. (*Mesa RHF Partners, L.P. v. City of Los Angeles* (2019) 33 Cal.App.5th 913, 918; *Wackeen v. Malis* (2002) 97 Cal.App.4th 429, 439-40.) The court cannot retain

jurisdiction if the parties never inform the court of the agreement to do so prior to dismissal.

In

this case, no party appeared at the December 3, 2020 OSC re: Dismissal or presented the Court with an agreement to retain jurisdiction. Thus, the Court dismissed the action without prejudice without retaining jurisdiction under section 664.6. Because the Court was not informed of an agreement to retain jurisdiction prior to dismissal, it dismissed the action without retaining such jurisdiction, and cannot acquire jurisdiction for the first time after dismissal.

Plaintiffs

argue that the Court only dismissed “the Complaint filed by CARLOUS B PARKER ET AL on 07/13/2018,” but not the cross-complaint filed on August 24, 2018. (See 12/03/2020 Minute Order.) Plaintiffs argue that no reservation of jurisdiction was necessary because the Court never lost jurisdiction with a cross-complaint still pending. (See *Eagle Fire & Water Restoration, Inc. v. City of Dinuba* (2024) 102 Cal.App.5th 448, 460.) However, this is a clerical error on the minute order. The Court in fact dismissed the entire action consistent with the settlement of the entire case. The Court hereby corrects its December 3, 2020 minute order nunc pro tunc to state the following: “The Court orders the Complaint filed by CARLOUS B PARKER ET AL on 07/13/2018 and the Cross-Complaint filed by DONALD PARKER ET AL on August 24, 2018 dismissed without prejudice.”

Because

the Court dismissed the action without retaining jurisdiction under Code of Civil Procedure section 664.6, the Court has no jurisdiction to grant the relief requested in the motion.

CONCLUSION

Plaintiffs’

motion to enforce settlement is DENIED.